

		Plaintiff shall give notice.
308	<i>Kim vs. City of Irvine</i>	The unopposed demurrer of defendant City of Irvine (Defendant) directed to the complaint of plaintiff Richard Kim (Plaintiff) is SUSTAINED with 20 days leave to amend. Defendant's alternative motion to strike is MOOT. "The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded." (<i>Brenner v. City of El Cajon</i> (2003) 113 Cal.App.4th 434, 439.) "Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations [Citation] but must specify in what manner the condition constituted a dangerous condition." (Ibid.) The complaint fails to plead the negligence cause of action against Defendant with the requisite specificity. The complaint does not clearly allege the "improperly placed" animal trap was owned by Defendant or that it was placed by an employee or agent of Defendant. The complaint also fails to allege with sufficient particularity Defendant's actual or constructive notice of the alleged dangerous condition in sufficient time to have taken corrective action. (See <i>Brenner, supra</i>, 113 Cal.App.4th at 439 [discussing elements of cause of action against public entity under Government Code section 835].) Moreover, Plaintiff failed to oppose the demurrer. As such, Plaintiff implicitly conceded the demurrer's merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The 8/17/26 CMC is continued to 11/16/26 at 8:45am in Dept. C24. Defendant shall give notice